The objections to the jurisdiction on the ground that there was no "cause" or "specific charge" pending before the grand jury were made and answered in *Hale* v. *Henkel*, 201 U. S. 43, and require no further examination.

But the question is also presented whether the subpœna was unauthorized, and hence void, because it was not directed to an individual, but to a corporation. It is urged that its form was unusual and unwarranted, in that it did not require any one to attend and to testify, but simply directed a corporation, which could not give oral testimony, to produce books.

While a subpœna *duces tecum* ordinarily contains the *ad testificandum* clause, this cannot be regarded as essential to its validity. The power to compel the production of documents is, of course, not limited to those cases where it is sought merely to supplement or aid the testimony of the person required to produce them. The production may be enforced independently of his testimony, and it was held long since that the writ of subpœna *duces tecum* was adquate for this purpose. As was said by Lord Ellenborough in *Amey* v. *Long*, 9 East, 484, "The right to resort to means competent to compel the production of written, as well as oral, testimony seems essential to the very existence and constitution of a Court of common law, which receives and acts upon both descriptions of evidence, and could not possibly proceed with due effect without them." Where the subpœna *duces tecum* contains the usual *ad testificandum* clause, still it is not necessary for the party requiring the production to have the person producing the documents sworn as a witness. They may be proved by others. 3 Wigmore on Evidence, §§ 1894, 2200; *Davis* v. *Dale*, M. & M. 514; *Summers* v. *Moseley*, 2 Cr. & M. 477; *Rush* v. *Smith*, 1 C. M. & R. 94; *Perry* v. *Gibson*, 1 A. & E. 48; *Martin* v. *Williams*, 18 Alabama, 190; *Treasurer* v. *Moore*, 3 Brev. (S. Car.), 550;